

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Filed:

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EDWIN NEGRON ARGUELLES,

*Plaintiff designates
BRONX County as
the place of trial
SUMMONS
The basis of venue
is place of
occurrence.*

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICER JESUS VARGAS, YANKEE STADIUM
HOLDINGS, LLC, YANKEE STADIUM LLC,
NEW YORK YANKEES PARTNERSHIP, YANKEE
GLOBAL ENTERPRISES LLC, and SECURITAS
SECURITY SERVICES USA, INC.,

Defendants.

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To the above named Defendants:

*YOU ARE HEREBY SUMMONED to answer the complaint in this
action and to serve a copy of your answer ,or, if the
complaint is not served with this summons, to appear in this
action by serving a notice of appearance, on the Plaintiff's
Attorney within 20 days after the service of this summons,
exclusive of the day of service (or within 30 days after the
service is complete if this summons is not personally deliv-
ered to you within the State of New York); and in case of
your failure to appear or answer, judgment will be taken
against you by default for the relief demanded in the
complaint.*

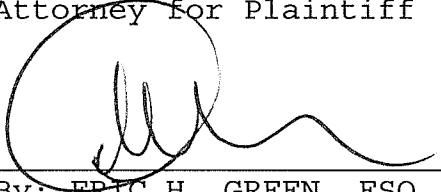
Dated: September 16, 2020

Defendants Addresses:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE
DEPARTMENT
100 Church Street
New York, New York 10007
and
333 65th Street
Brooklyn, New York 11220

ERIC H. GREEN, ESQ.
Attorney for Plaintiff


By: ERIC H. GREEN, ESQ.
Post Office Address
295 Madison Avenue
New York, New York 10017
(212) 532-2450

POLICE OFFICER**JESUS VARGAS**333 65th Street

Brooklyn, New York 11220

YANKEE STADIUM HOLDINGS LLC

800 Ruppert Place

Bronx, New York 10451

-and-

1 East 161st Street

Bronx, New York 10451

YANKEE STADIUM LLC

800 Ruppert Place

Bronx, New York 10451

-and-

1 East 161st Street

Bronx, New York 10451

NEW YORK YANKEES PARTNERSHIP

c/o Lonn A. Trost

Chief Operating Officer New

New York Yankess,

Yankee Stadium

Bronx, New York 10451

-and-

c/o Lonn A. Trost

New York Yankees

Yankee Stadium

Bronx, New York 10451

-and-

1 East 161st Street

Bronx, New York 10451

YANKEE GLOBAL ENTERPRISES LLC

365 South Street, Suite 2340

Morristown, New Jersey 07960

-and-

c/o Anthony Bruno

1 Steinbrenner Drive

Tampa, Florida 33614

SECURITAS SECURITY SERVICES USA, INC.1412 Broadway, 17th Floor

New York, New York 10018

-and-

c/o National Registered Agents, Inc.

28 Liberty Street

New York, New York 10005

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
EDWIN NEGRON ARGUELLES,

**VERIFIED
COMPLAINT**

Plaintiff,

- against -

Index No.:

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICER JESUS VARGAS, YANKEE STADIUM
HOLDINGS LLC, YANKEE STADIUM LLC,
NEW YORK YANKEES PARTNERSHIP,
YANKEE GLOBAL ENTERPRISES LLC,
SECURITAS SECURITY SERVICES USA, INC.,

Defendants.

-----X

Plaintiff, complaining of the defendants herein, by his
attorney, ERIC H. GREEN, ESQ., respectfully sets forth and
alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times herein mentioned, defendant **THE CITY OF NEW YORK**, was and still is a municipal corporation organized and existing under and by virtue of the Laws of the State of New York.

2. That at all times herein mentioned, plaintiff duly served a Notice of Claim and Intention to Sue thereupon on the defendant **THE CITY OF NEW YORK** on the 20th day of December, 2019, within the time prescribed by law.

3. That defendant **THE CITY OF NEW YORK** has neglected and refused to make an adjustment in payment thereof within thirty

(30) days after service of said Notice of Claim and Intention to Sue.

4. That plaintiff has duly complied with all statutes and laws applicable to the defendant, **THE CITY OF NEW YORK**, precedent to the making of this claim and bringing this action.

5. That at all times herein mentioned, defendant **THE NEW YORK CITY POLICE DEPARTMENT**, was and still is a department of and within a municipal corporation organized and existing under and by virtue of the Laws of the State of New York.

6. That at all times herein mentioned, plaintiff duly served a Notice of Claim and Intention to Sue thereupon on the defendant **THE NEW YORK CITY POLICE DEPARTMENT** on the 20th day of December, 2019, within the time prescribed by law.

7. That defendant **THE NEW YORK CITY POLICE DEPARTMENT** has neglected and refused to make an adjustment in payment thereof within thirty (30) days after service of said Notice of Claim and Intention to Sue.

8. That plaintiff has duly complied with all statutes and laws applicable to the defendant, **THE NEW YORK CITY POLICE DEPARTMENT**, precedent to the making of this claim and bringing this action.

9. That at all times herein mentioned, defendant, **THE CITY OF NEW YORK** employed, as a member of its police department defendant, **POLICE OFFICER JESUS VARGAS**.

10. That at all times herein mentioned, defendant, **YANKEE STADIUM HOLDINGS, LLC**, was a domestic corporation duly existing under and by virtue of the Laws of the State of New York.

11. That at all times herein mentioned defendant, **YANKEE STADIUM HOLDINGS, LLC**, was a company duly organized and existing under and by virtue of the laws of the State of New York.

12. That at all times herein mentioned, defendant, **YANKEE STADIUM HOLDINGS, LLC**, owned property located at 1 East 161st Street, Bronx County, City and State of New York.

13. That at all times herein mentioned, defendant, **YANKEE STADIUM HOLDINGS, LLC**, owned certain lands or premises located at 1 East 161st Street, Bronx County, City and State of New York.

14. That at all times herein mentioned, defendant, **YANKEE STADIUM HOLDINGS, LLC**, its agents, contractors and/or employees maintained certain lands or premises located at 1 East 161st Street, Bronx County, City and State of New York.

15. That at all times herein mentioned, defendant, **YANKEE STADIUM HOLDINGS, LLC**, its agents, contractors and/or employees controlled certain lands or premises located at 1 East 161st Street, Bronx County, City and State of New York.

16. That at all times herein mentioned, defendant, **YANKEE STADIUM HOLDINGS, LLC**, its agents, contractors and/or employees managed certain lands or premises located at 1 East 161st Street, Bronx County, City and State of New York.

17. That at all times herein mentioned, defendant, **YANKEE STADIUM HOLDINGS, LLC**, its agents, contractors and/or employees operated a baseball stadium open to the public located at 1 East 161st Street, Bronx County, City and State of New York.

18. That at all times herein mentioned, defendant, **YANKEE STADIUM LLC**, was a domestic corporation duly existing under and by virtue of the Laws of the State of New York.

19. That at all times herein mentioned defendant, **YANKEE STADIUM LLC**, was a company duly organized and existing under and by virtue of the laws of the State of New York.

20. That at all times herein mentioned, defendant, **YANKEE STADIUM LLC**, owned property located at 1 East 161st Street, Bronx County, City and State of New York.

21. That at all times herein mentioned, defendant, **YANKEE STADIUM LLC**, owned certain lands or premises located at 1 East 161st Street, Bronx County, City and State of New York.

22. That at all times herein mentioned, defendant, **YANKEE STADIUM LLC**, its agents, contractors and/or employees maintained certain lands or premises located at 1 East 161st Street, Bronx County, City and State of New York.

23. That at all times herein mentioned, defendant, **YANKEE STADIUM LLC**, its agents, contractors and/or employees controlled certain lands or premises located at 1 East 161st Street, Bronx County, City and State of New York.

24. That at all times herein mentioned, defendant, **YANKEE STADIUM LLC**, its agents, contractors and/or employees managed certain lands or premises located at 1 East 161st Street, Bronx County, City and State of New York.

25. That at all times herein mentioned, defendant, **YANKEE STADIUM LLC**, its agents, contractors and/or employees operated a baseball stadium open to the public located at 1 East 161st Street, Bronx County, City and State of New York.

26. That at all times herein mentioned, defendant, **NEW YORK YANKEES PARTNERSHIP**, was a business duly existing under and by virtue of the Laws of the State of New York.

27. That at all times herein mentioned defendant, **NEW YORK YANKEES PARTNERSHIP**, was a partnership duly organized and existing under and by virtue of the laws of the State of New York.

28. That at all times herein mentioned, defendant, **NEW YORK YANKEES PARTNERSHIP**, owned property located at 1 East 161st Street, Bronx County, City and State of New York.

29. That at all times herein mentioned, defendant, **NEW YORK YANKEES PARTNERSHIP**, owned certain lands or premises located at 1 East 161st Street, Bronx County, City and State of New York.

30. That at all times herein mentioned, defendant, **NEW YORK YANKEES PARTNERSHIP**, its agents, contractors and/or employees maintained certain lands or premises located at 1 East 161st Street, Bronx County, City and State of New York.

31. That at all times herein mentioned, defendant, **NEW YORK YANKEES PARTNERSHIP**, its agents, contractors and/or employees controlled certain lands or premises located at 1 East 161st Street, Bronx County, City and State of New York.

32. That at all times herein mentioned, defendant, **NEW YORK YANKEES PARTNERSHIP**, its agents, contractors and/or employees managed certain lands or premises located at 1 East 161st Street, Bronx County, City and State of New York.

33. That at all times herein mentioned, defendant, **NEW YORK YANKEES PARTNERSHIP**, its agents, contractors and/or employees operated a baseball stadium open to the public located at 1 East 161st Street, Bronx County, City and State of New York.

34. That at all times herein mentioned, defendant, **YANKEE GLOBAL ENTERPRISES LLC**, was a domestic corporation duly existing under and by virtue of the Laws of the State of New York.

35. That at all times herein mentioned defendant, **YANKEE GLOBAL ENTERPRISES LLC**, was a company duly organized and existing under and by virtue of the laws of the State of New York.

36. That at all times herein mentioned, defendant, **YANKEE GLOBAL ENTERPRISES LLC**, owned property located at 1 East 161st Street, Bronx County, City and State of New York.

37. That at all times herein mentioned, defendant, **YANKEE GLOBAL ENTERPRISES LLC**, owned certain lands or premises located at 1 East 161st Street, Bronx County, City and State of New York.

38. That at all times herein mentioned, defendant, **YANKEE GLOBAL ENTERPRISES LLC**, its agents, contractors and/or employees maintained certain lands or premises located at 1 East 161st Street, Bronx County, City and State of New York.

39. That at all times herein mentioned, defendant, **YANKEE GLOBAL ENTERPRISES LLC**, its agents, contractors and/or employees controlled certain lands or premises located at 1 East 161st Street, Bronx County, City and State of New York.

40. That at all times herein mentioned, defendant, **YANKEE GLOBAL ENTERPRISES LLC**, its agents, contractors and/or employees managed certain lands or premises located at 1 East 161st Street, Bronx County, City and State of New York.

41. That at all times herein mentioned, defendant, **YANKEE GLOBAL ENTERPRISES LLC**, its agents, contractors and/or employees operated a baseball stadium open to the public located at 1 East 161st Street, Bronx County, City and State of New York.

42. That at all times herein mentioned, defendant, **SECURITAS SECURITY SERVICES USA, INC.**, was a corporation duly existing under and by virtue of the Laws of the State of New York.

43. That at all times herein mentioned defendant, **SECURITAS SECURITY SERVICES USA, INC.**, was an entity conducting business under and by virtue of the laws of the State of New York.

44. That at all times herein mentioned, defendant, **SECURITAS SECURITY SERVICES USA, INC.**, provided security services at a baseball stadium located at 1 East 161st Street, Bronx County, City and State of New York.

45. That at all times herein mentioned, defendant, **SECURITAS SECURITY SERVICES USA, INC.** contracted to provide security service at a facility located at 1 East 161st Street, Bronx County, City and State of New York.

46. That at all times herein mentioned, defendant, **SECURITAS SECURITY SERVICES USA, INC.**, its agents, contractors and/or employees did provide security personnel during a baseball game at Yankee Stadium located at 1 East 161st Street, Bronx County, City and State of New York.

47. That at all times herein mentioned, defendant, **SECURITAS SECURITY SERVICES USA, INC.**, its agents, contractors and/or employees controlled security services at a baseball stadium located at 1 East 161st Street, Bronx County, City and State of New York.

48. That at all times herein mentioned, defendant, **SECURITAS SECURITY SERVICES USA, INC.**, its agents, contractors and/or employees managed security services at a baseball stadium located at 1 East 161st Street, Bronx County, City and State of New York.

49. On the 4th day of October, 2019, at approximately 10:00 p.m., the defendant, **THE CITY OF NEW YORK** by defendant, **POLICE OFFICER JESUS VARGAS** in the employ of said defendant did stop the plaintiff at 1 East 161st Street in the County of Bronx, City and State of New York.

50. On the 4th day of October, 2019, at approximately 10:00 p.m., the defendant, **THE CITY OF NEW YORK** including but not limited to, defendant, **POLICE OFFICER JESUS VARGAS** in the employ of said defendant did arrest and/or imprison this plaintiff at the 68th Precinct, in Bronx County, City and State of New York.

51. That defendants arrested, searched, seized, imprisoned, detained and incarcerated the plaintiff without cause.

52. That defendants did falsely arrest the plaintiff without legal basis.

53. As a result of these acts, the plaintiff was greatly humiliated, subjected to physical and mental distress and was injured in his character and reputation.

54. That this action falls within one or more of the exceptions set forth in Section 1602 of the C.P.L.R.

55. That as a result of the foregoing, the plaintiff, **EDWIN NEGRON ARGUELLES** has been damaged in an amount to be determined in excess of the jurisdiction of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION

56. This plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs of this complaint numbered "1" through "54", inclusive, with the same force and effect as though the same were more fully set forth and effect as though the same were more fully set forth at length therein.

57. That the action of these defendants, were unwarranted, willful and malicious without reason and/or provocation.

58. That subsequent to the above-mentioned events, the defendants herein maliciously prosecuted plaintiff, fingerprinted and photographed plaintiff, continued to imprison and detain the plaintiff and refused him necessary medical attention.

59. That said actions by the defendants herein were in violation of the plaintiff's civil rights.

60. The commencement and continuation of criminal proceedings was malicious and without probable cause.

61. The aforesaid criminal proceeding was ultimately dismissed.

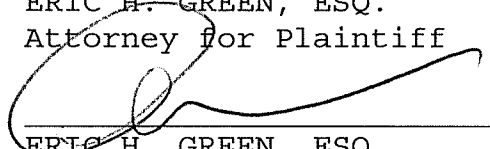
62. As a result of the aforesaid malicious prosecution, the plaintiff was greatly humiliated, subjected to physical and mental distress and was injured in his character and reputation.

63. That this action falls within one or more of the exceptions set forth in Section 1602 of the CPLR.

WHEREFORE, plaintiff, **EDWIN NEGRON ARGUELLES**, demands judgment in the FIRST CAUSE OF ACTION against the defendants in an amount to be determined in excess of the jurisdiction of all lower courts and plaintiff, **EDWIN NEGRON ARGUELLES**, demands judgement in the SECOND CAUSE OF ACTION against the defendants in an amount to be determined in excess of jurisdiction of all lower courts all together with the costs and disbursements of this action.

Dated: September 16, 2020

ERIC H. GREEN, ESQ.
Attorney for Plaintiff

By: 
ERIC H. GREEN, ESQ.
Post Office Address
295 Madison Avenue
New York, New York 10017
(212) 532-2450

/cb

ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney admitted to practice in the Courts of New York State, and say that:

I am the attorney of record, or of counsel with the attorney(s) of record for plaintiff(s).

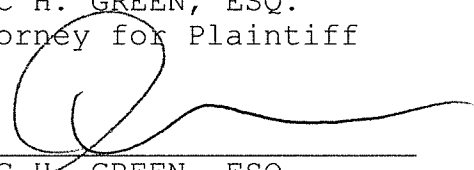
I have read the annexed Summons and Verified Complaint and know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge is based upon the following:

Interviews and/or discussions with the plaintiff and papers and/or documents in the file.

The reason I make this affirmation instead of plaintiff is because said plaintiff resides outside of the county from where your deponent maintains his office for the practice of law.

Dated: September 16, 2020
New York, New York

ERIC H. GREEN, ESQ.
Attorney for Plaintiff


By: ERIC H. GREEN, ESQ.
Post Office Address
295 Madison Avenue
New York, New York 10017
(212) 532-2450